

TAB 3



Board of Education Report

File #: Rep-021-24/25, **Version:** 1

Adoption of the Mitigated Negative Declaration and the Mitigation Monitoring and Reporting Program for the Garfield High School Major Modernization Project

September 10, 2024

Office of Environmental Health & Safety

Action Proposed:

Review and adopt the Mitigated Negative Declaration (MND) and Mitigation Monitoring and Reporting Program (MMRP) for the proposed Garfield High School Major Modernization Project (Project) prepared in compliance with the California Environmental Quality Act (CEQA) (Public Resources Code §21000 et seq.) and State CEQA Guidelines (California Code of Regulations, Title 14, Division 6, Chapter 3 §15000 et seq.).

Background:

On November 16, 2021, the Los Angeles Unified School District Board of Education (Board) approved project definition for site due diligence, planning, and feasibility activities necessary at Garfield High School (Garfield HS or Campus) for a major modernization (Board Report No. 122-21/22). Subsequently, on November 15, 2022, the Board approved the project redefinition for the major modernization (Board Report No. 074-22/23) and a budget of \$150 million with construction anticipated to begin Q1-2026 and be completed in Q3-2029.

The proposed Project is located within the 19.3-acre school campus at 5101 East Sixth Street in East Los Angeles, an unincorporated area within Los Angeles County (Board District 2, Region East). Garfield HS opened in 1925. All existing buildings were constructed between 1925 and 2012. The campus has been identified eligible as a historic district due to its students' participation in the 1968 civil rights movement known as the "Blowouts". All buildings present during the Blowouts are included in the historic district, however particular significance is placed on the football field and its bleachers. As of the 2023-2024 Electronic Capacity Assessment Review, the School served approximately 2,200 students in grades 9 through 12.

The proposed Project will construct new facilities, including a four-story Classroom Building with 31 general and specialty classrooms and support spaces, library and administration space. The proposed Project also includes exterior painting for all remaining buildings and structures at the School, and limited modernization of existing structures and infrastructure upgrades to ensure compliance with the Americans with Disabilities Act. The proposed Project will maintain the School's current capacity and total number of classrooms (84 classrooms).

The proposed Project includes the demolition of two permanent buildings (Parking Garage & Classroom Building 100 and Library & Classroom Building 200), two relocatable buildings, and a second-story pedestrian bridge. Interim facilities will be installed to allow the School to remain operational and minimize impact during construction.

The proposed Project also includes utility upgrades; Internet Protocol (IP) convergence; a new parking lot; new outdoor learning environments; the removal and replacement of trees; landscaping and irrigation; hardscaping; fencing, gates and site furnishings.

The Campus is not on any hazardous waste site lists under Section 65962.5 of the Government Code. A Preliminary Environmental Assessment-Equivalent (PEA-E) was conducted for the proposed Project in accordance with the Department of Toxic Substances Control (DTSC) guidelines. A Soil Removal Plan (SRP) would be implemented as part of the proposed Project to address the removal of contaminated soil. Similar reports would be prepared to address suspect asphalt and building materials encountered during construction. There is no direct student or staff exposure to the impacted soils since the affected soils are under asphalt pavement or will be off-limits. The SRP would ensure students and staff are not exposed to impacted soils during the removal work.

The District's Office of Environmental Health and Safety (OEHS) evaluated the proposed Project to determine its potential impacts on the environment in accordance with CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq.

Environmental review of the Project found that there would be no significant impacts as a result of the construction and operation of the Project with the implementation of Los Angeles Unified's Standard Conditions of Approval and mitigation measures. This evaluation, as documented in the Initial Study (IS), resulted in the preparation of a MND (State Clearinghouse Number 2024040744). The IS/MND was circulated for a 30-day public review period from April 17, 2024, to May 17, 2024. Copies of the IS/MND, PEA-E, and SRP were available for review electronically on the OEHS website and on the State Clearinghouse website. Printed copies were also made available for public review at OEHS District Headquarters at Beaudry and at Garfield High School.

The Notice of Intent to Adopt a Mitigated Negative Declaration (Notice of Intent or NOI) was posted on the OEHS website during the public review period, mailed the NOI to all owner/occupants located within a 0.25-mile radius of the Project site, to parents/guardians of students, and published the NOI in two local newspapers (Daily News and La Opinión). The NOI was filed with the Los Angeles County Clerk and with the State Clearinghouse for distribution to potentially affected state agencies, and the District mailed copies of the NOI directly to potentially affected state agencies, local agencies, tribal agencies pursuant to AB 52, and known interested parties.

During the public review period, a public community meeting was held on May 8, 2024, to provide information about the Project and receive comments on the IS/MND. The public community meeting was advertised along with the NOI through direct mailing of occupants within 0.25-mile of the Project site, door-to-door distribution of event flyers, and in two local newspapers (Daily News and La Opinión). The meeting included an overview of the proposed Project and the contents and findings of the IS/MND, and gave faculty, staff, agencies, organizations, parents/guardians, and community members the opportunity to make verbal and written comments on the Project and the IS/MND.

At the end of the public review period, the District received comment letters from two agencies and verbal comments from individuals during the community meeting. All letters and verbal comments were responded to by the District and are included in the attached Responses to Comments (RTC). The requirements set forth in the CEQA Guidelines Section 15073.5 regarding recirculation are not met.

Expected Outcomes:

Staff anticipates that the Board will review and make a determination on the attached Resolution to adopt the MND and MMRP pursuant to CEQA and State CEQA Guidelines. This action is required prior to the Board considering approval of the Project.

Board Options and Consequences:

A “Yes” vote to adopt the MND and the MMRP would enable the District to proceed with the proposed Project as proposed in the MND and the MMRP.

A “No” vote to adopt the MND would prevent the Board from approving the proposed Project, and the proposed Project could not proceed into construction.

Policy Implications:

This action does not change District policy. This action helps facilitate the Facilities Services Division Strategic Execution Plan and supports the goals and objectives of the School Upgrade Program (SUP). On August 24, 2021, the Board adopted an update to the SUP to integrate Measure RR funding and priorities into its operational framework and approved the Measure RR Implementation Plan (Implementation Plan) to help guide the identification of sites and development of project proposals (Board Report No. 027-21/22). The Implementation Plan included, among other things, the development of seven major modernization projects, one in each Board District. This Project is located in Board District 2.

Budget Impact:

This action does not have a budget impact.

Student Impact:

The proposed Project, once completed, will help ensure that the students attending the school are provided with a safe and healthy environment, and up-to-date facilities that promote learning.

Equity Impact:

The intent of the major modernization project is to address buildings and grounds that pose a safety concern and have the greatest need for upgrades with emphasis placed on seismic safety, reducing Los Angeles Unified’s reliance on relocatable buildings, and addressing the most critical/severe physical conditions. While the Project is extensive in nature, less critical items may not be addressed. This approach allows the District to reach more schools with the limited funding available.

Issues and Analysis:

Environmental review of the proposed Project found that, with the incorporation of mitigation measures, Los Angeles Unified’s Standard Conditions and Approvals, Project Design Features, as well as all applicable state, federal, and local regulations, there would be no significant impacts as a result of the Project.

The District is the “Lead Agency” as defined in the State CEQA Guidelines §§15050-15053, and the Board shall review and consider the MND, MMRP, and its supporting documents and comments.

Attachments:

Attachment A: Resolution of the Los Angeles Unified School District Board of Education Adopting the Mitigated Negative Declaration for the Garfield High School Major Modernization Project

Attachment B: Initial Study/ Mitigated Negative Declaration and Appendices. Due to the file size, may be viewed/downloaded from the [CEQA website](https://drive.google.com/file/d/16fv85VAddvpDYBOTvuu4gUHdSYJWD9e4/view?)
[<https://drive.google.com/file/d/16fv85VAddvpDYBOTvuu4gUHdSYJWD9e4/view?](https://drive.google.com/file/d/16fv85VAddvpDYBOTvuu4gUHdSYJWD9e4/view?)

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Attachment C: Mitigation Monitoring and Reporting Program

Attachment D: Responses to Comments

Linked materials of previously adopted Board reports referenced in the background and policy implications sections:

- Adopted November 16, 2021, [Board Report No. 122-21/22](https://drive.google.com/file/d/1O9hjhnuVnQl46HAqwKfo41H0qExKfJl9/view?usp=sharing)
<<https://drive.google.com/file/d/1O9hjhnuVnQl46HAqwKfo41H0qExKfJl9/view?usp=sharing>>
- Adopted November 15, 2022, [Board Report No. 074-22/23](https://drive.google.com/file/d/12lo9Y8XFDVffgoT0hBpZ6jKyYaDG1YM7/view?usp=sharing)
<<https://drive.google.com/file/d/12lo9Y8XFDVffgoT0hBpZ6jKyYaDG1YM7/view?usp=sharing>>
- Adopted August 24, 2021, [Board Report No. 027-21/22](https://drive.google.com/file/d/1XMZgFgMU1gwtbpCdIOqkRn9mnHhj6dG_/view?usp=sharing)
<https://drive.google.com/file/d/1XMZgFgMU1gwtbpCdIOqkRn9mnHhj6dG_/view?usp=sharing>

Informatives:

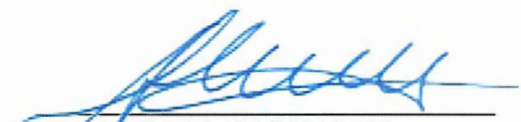
None.

Submitted:

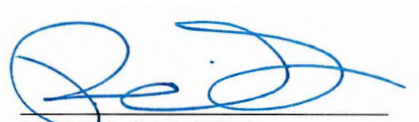
08/05/24

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RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent
Business Services & Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

APPROVED & PRESENTED BY:


ANDRES E. CHAIT
Chief of School Operations

☒ Approved as to form.

REVIEWED BY:


NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

APPROVED & PRESENTED BY:


CARLOS A. TORRES
Director
Office of Environmental Health & Safety

☒ Approved as to budget impact statement.

ATTACHMENT A

RESOLUTION OF THE LOS ANGELES UNIFIED SCHOOL DISTRICT BOARD OF EDUCATION ADOPTING THE MITIGATED NEGATIVE DECLARATION AND MITIGATION MONITORING AND REPORTING PROGRAM FOR THE GARFIELD HIGH SCHOOL MAJOR MODERNIZATION PROJECT

Whereas, on November 16, 2021, the Los Angeles Unified School District Board of Education (Board) approved project definition for site due diligence, planning, and feasibility activities necessary at Garfield High School (Garfield HS or Campus) for a major modernization (Board Report No. 122-21/22). Subsequently, on November 15, 2022, the Board approved the project redefinition for the major modernization (Board Report No. 074-22/23) and a budget of \$150 million with construction anticipated to begin Q1-2026 and be completed in Q3-2029; and

Whereas, under Measure RR and in conjunction with other, ongoing Los Angeles Unified Facilities programs, the District is proposing to upgrade, modernize, and replace aging and deteriorating school facilities; update technology; and address school facilities inequities to provide students with physically and environmentally safe, secure, and updated school facilities that support 21st century learning at hundreds of neighborhood schools District-wide; and

Whereas, the proposed Project is located within the 19.3-acre school campus at 5101 East Sixth Street in East Los Angeles, an unincorporated area within Los Angeles County (Board District 2, Region East). Garfield HS opened in 1925. All existing buildings were constructed between 1925 and 2012. The campus has been identified eligible as a historic district due to its students' participation in the 1968 civil rights movement known as the "Blowouts". All buildings present during the Blowouts are included in the historic district, however particular significance is placed on the football field and its bleachers. As of the 2023-2024 Electronic Capacity Assessment Review, the School served approximately 2,200 students in grades 9 through 12; and

Whereas, the proposed Project will construct new facilities, including a four-story Classroom Building with 31 general and specialty classrooms and support spaces, library and administration space. The proposed Project also includes exterior painting for all remaining buildings and structures at the School, and limited modernization of existing structures and infrastructure upgrades to ensure compliance with the Americans with Disabilities Act. The proposed Project will maintain the School's current capacity and total number of classrooms (84 classrooms); and

Whereas, the proposed Project includes the demolition of two permanent buildings (Parking Garage & Classroom Building 100 and Library & Classroom Building 200), two relocatable buildings, and a second-story pedestrian bridge. Interim facilities will be installed to allow the School to remain operational and minimize impact during construction; and

Whereas, the proposed Project also includes utility upgrades; Internet Protocol (IP) convergence; a new parking lot; new outdoor learning environments; the removal and replacement of trees; landscaping and irrigation; hardscaping; fencing, gates and site furnishings; and

Whereas, the Campus is not on any hazardous waste site lists under Section 65962.5 of the Government Code. A Preliminary Environmental Assessment-Equivalent (PEA-E) was conducted for the proposed Project in accordance with the Department of Toxic Substances Control (DTSC) guidelines. A Soil Removal Plan (SRP) would be implemented as part of the proposed Project to address the removal of contaminated soil. Similar reports would be prepared to address suspect asphalt and building materials encountered during construction. There is no direct student or staff exposure to the impacted soils since the affected soils are under asphalt pavement or will be off-limits. The SRP would ensure students and staff are not exposed to impacted soils during the removal work; and

Whereas, the District's Office of Environmental Health and Safety (OEHS) evaluated the proposed Project to determine its potential impacts on the environment in accordance with CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq.; and

Whereas, environmental review of the proposed Project as documented in the Initial Study (IS), resulted in the preparation of a Mitigated Negative Declaration (MND) (State Clearinghouse Number 2024040744), which found that the Project would have no significant effects on the environment as a result of construction and operation of the Project with the implementation of mitigation measures and Los Angeles Unified's Standard Conditions of Approval; and

Whereas, on April 17, 2024, the District filed the Notice of Intent to Adopt a Mitigated Negative Declaration (NOI) pursuant to the requirements of CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq.; and

Whereas, from April 17, 2024, to May 17, 2024, the IS/MND, PEA-E, and SRP were circulated for public review with electronic copies placed on the OEHS and State Clearinghouse websites and printed copies made available at the OEHS District Headquarters and at Garfield High School; and

Whereas, the District provided responses in the MND to the written and verbal comments received during the public review period, and to those received at the community meeting held on May 8, 2024.; and

Whereas, the District is the "Lead Agency" as defined in State CEQA Guidelines §§15050-15053, and the Board shall review and consider the MND and its supporting documents and comments.

Resolved, that the Board finds that:

The Project may not have an adverse effect on fish and wildlife, as referenced in §711.2 of the Fish and Game Code; and

The presumption of adverse effect set forth in California Code of Regulations, Title 14, §753.5(d) does not apply; and be it

Resolved further, that the Board hereby:

1. Finds that the Mitigated Negative Declaration (MND) and Mitigation Monitoring and Reporting Program (MMRP) were completed in compliance with CEQA and State CEQA Guidelines, as amended; and
2. Finds that the MND and MMRP reflects the District's independent judgment and analysis; and
3. Finds that the Board reviewed and considered the information in the MND and MMRP before making a decision to approve the Project; and
4. Adopts the MND and MMRP; and be it

Resolved further, that the Board specifies that the record of proceedings on which the Board's decision is based is located at the Los Angeles Unified School District, Office of Environmental Health and Safety, 333 South Beaudry Avenue, 21st Floor, Los Angeles, California, and the custodian of the record of proceedings is the Office of Environmental Health and Safety.

PASSED, APPROVED AND ADOPTED this 10th day of September 2024, by the following vote:

AYES:

NOES:

ABSENT:

ABSTAIN:

Michael McLean
Executive Officer of the Board of Education

Date

ATTACHMENT B

Initial Study/ Mitigated Negative Declaration and
Appendices.

Due to the file size, you may be viewed/downloaded
from the following link: [CEQA website](#).

July 2024 | Mitigation, Monitoring, and Reporting Program
State Clearinghouse No. 2024040744
James A. Garfield High School
Major Modernization Project



Prepared for:

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1. Introduction

1.1 PURPOSE

This Mitigation Monitoring and Reporting Program (MMRP) has been developed to provide a vehicle by which to implement and monitor compliance with the mitigation measures identified by Los Angeles Unified School District (LAUSD) for the major modernization project at James A. Garfield High School (Project).

This MMRP has been prepared in conformance with Section 21081.6 of the Public Resources Code, which states:

- (a) When making findings required by paragraph (1) of subdivision (a) of Section 21081 or when adopting a mitigated negative declaration pursuant to paragraph (2) of subdivision (c) of Section 21080, the following requirements shall apply:
 - (1) The public agency shall adopt a reporting or monitoring program for the changes made to the project or conditions of project approval, adopted in order to mitigate, or avoid significant effects on the environment. The reporting or monitoring program shall be designed to ensure compliance during project implementation. For those changes which have been required or incorporated into the project at the request of a responsible agency or a public agency having jurisdiction by law over natural resources affected by the project, that agency shall, if so requested by the lead or responsible agency, prepare and submit a proposed reporting or monitoring program.

The Project is subject to the California Department of Education (CDE) design and siting requirements, and the school architectural designs are subject to review and approval by the California Division of the State Architect (DSA). The Project is required to comply with specific design standards and sustainable building practices. Certain standards assist in reducing environmental impacts, such as the California Green Building Code (CALGreen Code),¹ LAUSD Standard Conditions of Approval (SC), and the Collaborative for High-Performance Schools (CHPS) criteria.²

California Green Building Code. Part 11 of the California Building Standards Code is the California Green Building Standards Code, also known as the CALGreen Code. The CALGreen Code is a statewide green building standards code and is applicable to residential and non-residential buildings throughout California, including schools. The CALGreen Code was developed to reduce greenhouse gas (GHG) emissions from buildings; promote environmentally responsible, cost-effective, healthier places to live and work; reduce energy

¹ California Green Building Standards Code, Title 24, Part 11.

² The Board of Education's October 2003 Resolution on Sustainability and Design of High Performance Schools directs staff to continue its efforts to ensure that every new school and modernization project in the District, from the beginning of the design process, incorporate CHPS (Collaborative for High Performance Schools) criteria to the extent possible.

1. Introduction

and water consumption; and respond to the environmental directives of the Department of Housing and Community Development.

Standard Conditions of Approval for District Construction, Upgrade, and Improvement Projects. The SCs for District Construction, Upgrade, and Improvement Projects were adopted by the Board on December 12, 2023.³ SCs are environmental standards that are applied to District construction, upgrade, and improvement projects during the environmental review process by the Office of Environmental Health and Safety (OEHS) CEQA team to offset potential environmental impacts. The most recently adopted SCs were updated in order to incorporate and reflect recent changes in the laws, regulations and the District's standard policies, practices and specifications (e.g., the LAUSD Design Guidelines and Design Standards, which are routinely updated and are referenced throughout the SCs).

Collaborative for High-Performance Schools. The proposed Project would include CHPS criteria points under seven categories: Integration, Indoor Environmental Quality, Energy, Water, Site, Materials and Waste Management, and Operations and Metrics. LAUSD is committed to sustainable construction principles and has been a member of the CHPS since 2001. CHPS has established criteria for the development of high-performance schools to create a better educational experience for students and teachers by designing the best facilities possible. CHPS-designed facilities are healthy, comfortable, energy efficient, material efficient, easy to maintain and operate, commissioned, environmentally responsive site, a building that teaches, safe and secure, community resource, stimulating architecture, and adaptable to changing needs. The proposed Project would comply with CHPS and LAUSD sustainability guidelines. The design team would be responsible for incorporating sustainability features for the proposed Project, including on-site treatment of stormwater runoff, "cool roof" building materials, lighting that reduces light pollution, water and energy-efficient design, water-wise landscaping, collection of recyclables, and sustainable and/or recycled-content building materials.

Project Design Features. Project design features (PDFs) are environmental protection features that modify a physical element of a site-specific project and are depicted in a site plan or documented in the project design plans. PDFs may be incorporated into a project design or description to offset or avoid a potential environmental impact and do not require more than adhering to a site plan or project design. Unlike mitigation measures, PDFs are not special actions that need to be specifically defined or analyzed for effectiveness in reducing potential impacts.

Mitigation Measures. If, after incorporation and implementation of federal, State, and local regulations, CHPS prerequisite criteria, PDFs, and SCs, there are still significant environmental impacts, then feasible and project-specific mitigation measures are required to reduce impacts to less than significant levels. Mitigation under CEQA Guidelines Section 15370 includes:

- Avoiding the impact altogether by not taking a certain action or parts of an action.
- Minimizing impacts by limiting the degree or magnitude of the action and its implementation.

³ LAUSD. Los Angeles Unified School District Standard Conditions of Approval for District Construction, Upgrade, and Improvement Projects
https://www.lausd.org/cms/lib/CA01000043/Centricity/domain/135/ceqa/2023_Standard_Conditions_UPDATE_Final.pdf

1. Introduction

- Rectifying the impact by repairing, rehabilitating, or restoring the impacted environment.
- Reducing or eliminating the impact over time by preservation and maintenance operations during the life of the action.
- Compensating for the impact by replacing or providing substitute resources or environments, including through permanent protection of such resources in the form of conservation easements.

Mitigation measures must further reduce significant environmental impacts above and beyond compliance with federal, State, and local laws and regulations, PDFs, and SCs.

The specific CHPS prerequisite criteria and LAUSD SCs are identified in the tables under each CEQA topic.⁴ Federal, State, regional, and local laws, regulations, plans, and guidelines, CHPS criteria, PDFs, and SCs are considered part of the proposed Project and are included in the environmental analysis.

1.2 PROJECT LOCATION

Garfield HS is at 5101 East Sixth Street within the neighborhood of East Los Angeles, an unincorporated community of Los Angeles County (Assessor Parcel Numbers [APNs] 5248-021-901, 5248-010-904, and 5248-012-914). The Campus sits on a 19.3-acre site bound by East Sixth Street to the south, South Woods Avenue to the east, residences and Escuela Street to the north, and Fraser Avenue to the west.

1.3 SUMMARY PROJECT DESCRIPTION

The proposed Project is designed to address the most critical physical concerns of the buildings and grounds at Garfield HS through building replacement, renovation, and modernization to provide facilities that are safe, secure, and better aligned with the current instructional program. The proposed Project includes the demolition of two permanent buildings and two portable buildings, demolition of a second-story pedestrian bridge, construction of a staff parking lot, and construction of a new permanent building that provides adequate learning spaces and support areas. Additionally, the proposed Project includes upgrades to and replacement of aging utilities and infrastructure, Internet Protocol (IP) convergence, and new landscaping and hardscaping. Limited modernization of existing structures including accessible facilities consistent with the requirements of the Americans with Disabilities Act (ADA) and seismic retrofit pursuant to California Assembly Bill 300 would also be implemented.

1.4 ENVIRONMENTAL IMPACTS

1.4.1 No Impact and Less Than Significant Impact

The following environmental resource areas were identified as no impact or less than significant in the Initial Study.

⁴ CHPS. CHPS Criteria. <https://chps.net/chps-criteria>.

1. Introduction

- Aesthetics
- Agriculture and Forestry Resources
- Air Quality
- Biological Resources
- Energy
- Geology and Soils
- Greenhouse Gas Emissions
- Hazards and Hazardous Materials
- Hydrology and Water Quality
- Land Use and Planning
- Mineral Resources Noise
- Pedestrian Safety
- Population and Housing
- Public Services
- Recreation
- Transportation and Circulation
- Tribal Cultural Resources
- Utilities and Service Systems
- Wildfire

1.4.2 Less Than Significant with Mitigation

The Initial Study found that the Project would result in a potentially significant impact without mitigation to Cultural Resources. Table 1 lists the mitigation measure that was incorporated into the Project. With the incorporation of mitigation measure MM-CUL-1, impacts to Cultural Resources would be less than significant.

2. Monitoring and Reporting Requirements

2.1 INTRODUCTION

CEQA requires adoption of a reporting or monitoring program for the conditions of Project approval that are necessary to mitigate, reduce, or avoid significant impacts on the environment.⁵

The purpose of the MMRP is to ensure the effective implementation of the measures for the Project. In addition, it provides a means for identifying corrective actions, if necessary, before irreversible environmental damage occurs. As the Lead Agency, LAUSD is responsible for review and approval of the Project and adoption of the MMRP.

The program requirements outlined in Table 1 include:

- Mitigation measures;
- Responsibility for implementation;
- Implementation phase (i.e., pre-construction, construction, prior to occupancy, post-occupancy);
- Responsibility for monitoring; and
- Completion date and initials of monitoring party.

2.2 CATEGORIZED MATRIX

Project-specific mitigation measures have been categorized in Table 1. The table serves as the basis for scheduling the implementation of and compliance with mitigation measures.

⁵ Public Resources Code, Section 21081.6.

2. Monitoring and Reporting Requirements

Table 1
Mitigation Monitoring and Reporting Program

Mitigation Measures	Responsibility for Implementation	Implementation Phase	Responsibility for Monitoring	Monitor (Signature Required) (Date of Compliance)
CULTURAL RESOURCES				
MM-CUL-1 LAUSD shall require the Construction Contractor to develop and implement an interpretative outdoor program: • Outdoor Classroom/History Garden. The Construction Contractor shall develop an outdoor classroom/history garden that includes the following minimum requirements: The garden shall be a minimum of 2,000 sf in size, intended to be an area where students can collectively gather and learn as a classroom or collaborate in smaller groups surrounded by a natural, planted backdrop. The outdoor classroom shall include permeable pavers, seating for 32 students, and electrical outlets, wifi, and a blackboard. Features of the garden are intended to commemorate the events, people, and places associated with Garfield HS, particularly with regard to the school's role in the Blowouts and the Chicano Civil Rights Movement in Los Angeles. At a minimum, the garden shall incorporate interpretive panels, display cases, and plaques, as described below. These	LAUSD FSD / OEHS ⁶	During the design of and prior to the construction of any new buildings on the Campus	LAUSD FSD / OEHS	

⁶ FSD – Facilities Services Division
OEHS – Office of Environmental Health and Safety

2. Monitoring and Reporting Requirements

Table 1
Mitigation Monitoring and Reporting Program

Mitigation Measures	Responsibility for Implementation	Implementation Phase	Responsibility for Monitoring	Monitor (Signature Required) (Date of Compliance)
features could be placed throughout campus as well. 1. Opportunities to Communicate. Outdoor spaces shall be designed to encourage the exchange of stories and information pertinent to the historic events that took place on the campus. These spaces shall be open to students, faculty, and campus visitors (including alumni and the general public). 2. Interpretive Panels. The Construction Contractor shall develop content for interpretive panels to be placed in the History Garden and other locations on campus at Garfield HS, as well as the other East Los Angeles schools that participated in the Blowouts. Panels should include approximately 200 words of narrative text, as well as maps, photographs, and images that tell the story of the Blowouts. Permanent panels shall be installed in the History Garden, as well as throughout the campus referring to historic events associated with the Blowouts.				

July 2024 | Response to Comments
State Clearinghouse No. 2024040744
James A. Garfield High School
Major Modernization Project



Prepared for:

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1. Introduction

1. Introduction

1.1 INTRODUCTION

This document includes the public comments received on the Initial Study prepared for the James A. Garfield High School Major Modernization Project (Project) and provides Los Angeles Unified School District's (LAUSD's) responses to these comments.

Under the California Environmental Quality Act (CEQA) (Public Resources Code, Division 13, Sections 21000 et seq.) and the CEQA Guidelines (California Code of Regulations [CCR] Section 15000 et seq.), a lead agency has no affirmative duty to prepare formal responses to comments on an Initial Study. The lead agency, however, should have adequate information on the record explaining why the comments do not affect the conclusion of the Initial Study. In the spirit of public disclosure and engagement, LAUSD – as the lead agency for the Project – has responded to all written comments submitted during the 30-day public review period.

1.2 PUBLIC ENGAGEMENT

Notice of Intent to Adopt a Mitigated Negative Declaration (MND). Per CEQA Guidelines Section 15072 and 15073, LAUSD determined that an MND would be appropriate for the Project and circulated a Notice of Intent to Adopt a Mitigated Negative Declaration (NOI) and the Initial Study. The public review period for this CEQA-compliant document was from April 17, 2024 to May 17, 2024. Public outreach included the following methods:

1.2.1 Newspaper Publications

- NOI published in the legal announcement section of the Daily News (English) on April 17, 2024.
- NOI published in the legal announcement section of the La Opinión (Spanish) on April 17, 2024.

1.2.2 Mailings

- NOI sent to eight State and local agencies, five elected officials, the Los Angeles Registrar-Recorder / County Clerk, and the State Clearinghouse.
- NOI sent to student / parent guardian addresses and all addresses within a 0.25-mile radius of the Project site and – 2,979 mailings.

1. Introduction

1.2.3 Document Availability

The NOI and Initial Study were available for review at the following locations:

- Garfield High School (Main Office) (5101 E 6th St, East Los Angeles, CA 90022)
- LAUSD Office of Environmental Health and Safety website (<https://www.lausd.org/ceqa>)
- California State Clearinghouse (<https://ceqanet.opr.ca.gov/>)

1.2.4 Community Outreach

A virtual public meeting was held via Zoom on May 8, 2024 at 6:00 PM. The meeting provided agencies and the public with an opportunity to comment on the Project and the Initial Study. The meeting included a presentation of the proposed Project, a summary of findings for CEQA and the Preliminary Environmental Assessment-Equivalent (PEA-E), and a question and answer (Q&A) session. During the Q&A session, commenters had inquiries on the following topics:

- Design (including questions regarding the architect selection process, classroom and support spaces, Americans with Disabilities Act of 1990 (ADA) improvements, parking, athletics facilities, landscaping etc.)
- Construction (including questions regarding schedule, safety precautions, traffic control, interim housing)
- Public engagement process

Those comments that were received (listed above) were addressed by LAUSD during the meeting. No other formal comments were received via letter or e-mail from community members. Additionally, none of the Zoom comments pertained to the adequacy of the environmental analyses contained in this Initial Study. As such, pursuant to CEQA Guidelines Section 15204(b), Zoom comments from the May 8, 2024 meeting are not included in this document and do not warrant additional written responses.

1.2.5 Document Format

This document is organized as follows:

Section 1, Introduction. This section describes CEQA requirements and the content of this document.

Section 2, Response to Comments. This section provides a list of agencies and interested persons commenting on the Initial Study, copies of comments received during the public review period, and individual responses to written comments. To facilitate review of the responses, each comment has been reproduced and

1. Introduction

assigned an alphabetical letter. Individual comments have been provided, followed by responses from LAUSD with references to the corresponding comment number.

1.3 CEQA REQUIREMENTS REGARDING COMMENTS AND RESPONSES

CEQA Guidelines Section 15204(b) outlines parameters for submitting comments on an Initial Study and reminds persons and public agencies that the focus of review and comment should be “on the proposed findings that the project will not have a significant effect on the environment.” If the commenter believes that the project may have a significant effect, they should: (1) identify the specific effect; (2) explain why they believe the effect would occur; and (3) explain why they believe the effect would be significant.

Comments are most helpful when they suggest additional specific alternatives or mitigation measures that would provide better ways to avoid or mitigate the significant environmental effects. At the same time, reviewers should be aware that the adequacy of an Initial Study is determined in terms of what is reasonably feasible. CEQA Guidelines Section 15204(c) advises, “[re]viewers should explain the basis for their comments, and should submit data or references offering facts, reasonable assumptions based on facts, or expert opinion supported by facts in support of the comments. Pursuant to Section 15064, an effect shall not be considered significant in the absence of substantial evidence.”

CEQA Guidelines Section 15204(d) also states, “[e]ach responsible agency and trustee agency shall focus its comments on environmental information germane to that agency’s statutory responsibility.” CEQA Guidelines Section 15204(e) states, “[t]his section shall not be used to restrict the ability of reviewers to comment on the general adequacy of a document or of the lead agency to reject comments not focused as recommended by this section.”

Finally, CEQA does not require a lead agency to conduct every test or perform all research, study, and experimentation recommended or demanded by commenters. Written responses to comments are not required; however, it is LAUSD’s policy to respond in writing to all comments. When responding to comments, lead agencies need only respond to potentially significant environmental issues and do not need to provide all information requested by reviewers, as long as a good faith effort at full disclosure is made in the environmental document.

2. Response to Comments

2. Response to Comments

This section provides all written comments received on the Initial Study and LAUSD's response to each comment.

Table 1
Summary of Comments Received

Reference	Commenting Person / Agency	Date of Comment	Page Number
Written Comment Letters			
A	California Department of Transportation	May 17, 2024	6
B	Department of Toxic Substances Control	May 10, 2024	9

2. Response to Comments

COMMENT A – Miya Edmonson, California Department of Transportation (Caltrans) (2 pages)

STATE OF CALIFORNIA—CALIFORNIA STATE TRANSPORTATION AGENCY

GAVIN NEWSOM, Governor

DEPARTMENT OF TRANSPORTATION

DISTRICT 7
100 S. MAIN STREET, MS 16
LOS ANGELES, CA 90012
PHONE (213) 268-3562
FAX (213) 897-1337
TTY 711
www.dot.ca.gov



Making Conservation
a California Way of Life

May 17, 2024

Christy Wong
Los Angeles Unified School District
333 S. Beaudry Ave, 21st Floor
Los Angeles, CA 90017

RE: James A. Garfield High School Major
Modernization Project: Mitigated
Negative Declaration (MND)
GTS # 07-LA-2024-04510
SCH # 2024040744
Vic. LA 60/PM R3.959
LA 710/PM 24.262
LA 5/PM 12.971

Dear Christy Wong:

Thank you for including the California Department of Transportation (Caltrans) in the environmental review process for the above-referenced project. The proposed Project is designed to address the most critical physical concerns of the buildings and grounds at Garfield HS through building replacement, renovation, and modernization to provide facilities that are safe, secure, and better aligned with the current instructional program. The proposed Project includes demolishing two permanent buildings and two portable buildings, demolishing a second-story pedestrian bridge, constructing a staff parking lot, and constructing a new permanent building that provides adequate learning spaces and support areas. Additionally, the proposed Project includes upgrading and replacing aging utilities and infrastructure, Internet Protocol (IP) convergence, and new landscaping and hardscaping. Limited modernization of existing structures including accessible facilities consistent with the requirements of the Americans with Disabilities Act (ADA) and seismic retrofit pursuant to California Assembly Bill 300 would also be implemented. The PEA-E and SRP present the findings of the site assessment investigations performed for this proposed Project. The campus is not on any of the lists compiled under Government Code Section 65926.5. The Los Angeles Unified School District is the Lead Agency under the California Environmental Quality Act (CEQA).

The closest state facilities are SR-60, I-710, and I-5. After reviewing the project's documents, Caltrans has the following comments:

To meet the goals and objectives of community placemaking and safe urban design, Caltrans encourages the Lead Agency to incorporate multi-modal infrastructure along and within the school boundaries for people walking, riding bicycles, and riding transit. This

A-1

*"Provide a safe and reliable transportation network that serves all people
and respects the environment."*

2. Response to Comments

Christy Wong
May 17, 2024
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infrastructure should include ADA-compliant design, adequate sidewalks, high visibility crosswalks, class IV bike lanes, and bike parking to best create a fully accessible Complete Street.	A-1 Cont.
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Caltrans will require an Encroachment Permit for work performed within the State Right-of-way. Caltrans recommends that large-size truck travel be limited to off-peak commute hours. Caltrans requires a permit for any heavy construction equipment and or materials that require the use of oversized transport vehicles on State highways.	A-2
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Caltrans recommends that the Project limit construction traffic to off-peak periods to minimize the potential impact on State facilities. If construction traffic is expected to cause issues on any State facilities, please submit a construction traffic control plan detailing these issues for Caltrans' review.	A-3
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If you have any questions, please feel free to contact Jaden Oloresisimo, the project coordinator, at Jaden.Oloresisimo@dot.ca.gov and refer to GTS # 07-LA-2024-04510.

Sincerely,

Anthony Higgins for

MIYA EDMONSON
LDR/CEQA Branch Chief

cc: State Clearinghouse

*"Provide a safe and reliable transportation network that serves all people
and respects the environment."*

2. Response to Comments

A. Response to Comments from Miya Edmonson, Caltrans, dated May 17, 2024

- A-1 Comment noted. The proposed Project involves ADA accessibility improvements and increases the number of parking stalls on-campus (refer to Section 3.2.3, *Site Access, Circulation, and Parking*). However, the proposed Project does not include any off-site improvements.
- A-2 Comment noted. LAUSD would obtain an Encroachment Permit for work performed within the State Right-of-Way and comply with all requirements for State highways. Additionally, the District's Standard Conditions of Approval (Standard Conditions or SCs), limits construction-related trucks to off peak commute periods (refer to SC-T-4 in Section 4.18, *Transportation and Circulation* of the Initial Study).
- A-3 Comment noted. Refer to the Response to Comment A-2.

2. Response to Comments

COMMENT B – Tamara Purvis, Department of Toxic Substances (DTSC) (3 pages)



SENT VIA ELECTRONIC MAIL

May 10, 2024

Christy Wong
CEQA Project Manager
Los Angeles Unified School District
333 S Beaudry Ave, 21st Floor
Los Angeles, CA 90017
cp-christy.wong@lausd.net

RE: MITIGATED NEGATIVE DECLARATION (MND) FOR THE JAMES A. GARFIELD
HIGH SCHOOL MAJOR MODERNIZATION PROJECT, DATED APRIL 17, 2024
STATE CLEARINGHOUSE # [2024040744](#)

Dear Christy Wong,

The Department of Toxic Substances Control (DTSC) received a MND for the James A. Garfield High School Major Modernization Project (Project). The proposed Project includes the demolition of two permanent buildings and two portable buildings, demolition of a second-story pedestrian bridge, construction of a staff parking lot, and construction of a new permanent building that provides adequate learning spaces and support areas. Additionally, the proposed Project includes upgrades to and replacement of aging utilities and infrastructure, Internet Protocol (IP) convergence, and new landscaping and hardscaping. Limited modernization of existing structures including accessible facilities consistent with the requirements of the Americans with Disabilities Act (ADA) and seismic retrofit pursuant to California Assembly Bill

2. Response to Comments

Christy Wong
May 10, 2024
Page 2

300 would also be implemented. Based on our review, DTSC requests consideration of the following comments.

1. If the district plans to use California Department of Education (CDE) State funds for the project, then the district shall comply with the requirements of Education Code (EDC), [§17210](#), [§17213.1](#), and [§17213.2](#), unless otherwise specifically exempted under section [§17268](#). If the district is not using CDE State funds for the project, or is otherwise specifically exempt under section [§17268](#), DTSC recommends the district continue to investigate, clean up the Site under the oversight of Los Angeles County and in concurrence with all applicable DTSC guidance documents, if necessary. For more information on the CDE State funding, please visit the [Office of Public-School Construction](#) webpage.

B-1

A local education agency may also voluntarily request the CDE site/plan approval for locally funded site acquisitions and new construction projects. In these cases, CDE will require DTSC to review and approve prior to its final approval, except when exempt under section 17268.

2. If buildings or other structures are to be demolished on any project sites included in the proposed project, surveys should be conducted for the presence of lead-based paints or products, mercury, asbestos containing materials, and polychlorinated biphenyl caulk. Removal, demolition, and disposal of any of the above-mentioned chemicals should be conducted in compliance with California environmental regulations and policies. In addition, sampling near current and/or former buildings should be conducted in accordance with DTSC's 2006 [Interim Guidance Evaluation of School Sites with Potential Contamination from Lead Based Paint, Termiticides, and Electrical Transformers](#).

B-2

3. DTSC recommends that all imported soil and fill material should be tested to ensure any contaminants of concern are within DTSC's and U.S. Environmental Protection Agency (USEPA) Regional Screen Levels (RSLs) for the intended land use. To minimize the possibility of introducing contaminated soil and fill material there should be documentation of the origins of the soil or fill material and, if applicable, sampling be conducted to ensure that the imported soil and fill

B-3

2. Response to Comments

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material meets screening levels outlined in the [PEA](#) for the intended land use.

The soil sampling should include analysis based on the source of the fill and knowledge of the prior land use. Additional information can be found by visiting [DTSC's Human and Ecological Risk Office \(HERO\) webpage](#).

B-3
Cont.

DTSC appreciates the opportunity to comment on the MND for the Project. If you would like to proceed with DTSC's school environmental review process, please visit [DTSC's Evaluating & Clean-up School 3-Step Process](#) to begin a Phase I Environmental Site Assessment.

Thank you for your assistance in protecting California's people and environment from the harmful effects of toxic substances. If you have any questions or would like any clarification on DTSC's comments, please respond to this letter or via [email](#) for additional guidance.

Sincerely,

Tamara Purvis

Tamara Purvis
Associate Environmental Planner
HWMP – Permitting Division - CEQA Unit
Department of Toxic Substances Control
Tamara.Purvis@dtsc.ca.gov

2. Response to Comments

B. Response to Comments from Tamara Purvis, DTSC, dated May 10, 2024

- B-1 Comment noted. LAUSD intends to remove arsenic-contaminated soils south of Building 100 (SB-13), north of portable AA-336 (SB-25), and near the northeast corner of portable AA-2254 (SB-36). Additionally, LAUSD intends to remove lead-contaminated soils surrounding Building 200 (SB-14, SB-22, and SB-34) and northeast of portable AA-2254 (SB-36). For soil sample locations, refer to Section 4.9, *Hazards and Hazardous Materials* of the Initial Study and Appendix H, *Preliminary Environmental Assessment Equivalent (PEA-E) Report* of the Initial Study. Lead and arsenic impacted areas would be managed in accordance with the Soil Removal Plan (SRP), which has been included as Appendix I for reference. This plan would govern delineation, excavation, segregation, and proper handling of soil with arsenic and lead exceedances discovered during the PEA-E.
- B-2 Comment noted. Prior to any demolition, remodeling, and/or renovation activities at the Project site, untested suspect asbestos-containing materials (ACMs), lead-based paints (LBP) and other lead-containing materials (LCMs), and potential Polychlorinated Biphenyls (PCB)-containing building material that may be disturbed would be sampled and analyzed in accordance with applicable regulations. Abatement of known and suspect ACMs, LBP and other LCMs, and potential PCB-containing caulk and paints and any adjacent PCB-impacted building or construction materials should be performed prior to any demolition, remodeling, and/or renovation activities (that would disturb the ACMs and LBP and other LCMs) in accordance with applicable regulations.
- B-3 Comment noted. Any soil that is imported or exported must be chemically tested in accordance with specific written procedures as outlined in LAUSD Specifications, Section 01 4524, *Environmental Import/Export Materials Testing*. This specification has the requirements for the sampling, testing, transporting, and certifying of imported fill materials or exported fill materials from school sites.